

## BC614258 BC614258

County: los-angeles

Division: Civil Law and Motion

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Case Number: BC614258 Hearing Date: August 5, 2026 Dept: 224

Baldwin v. Champion Mortgage et al.,

### TENTATIVE RULING

The motion to dismiss is CONTINUED to August 28, 2026 at 9:00 a.m. for the parties to submit supplemental briefing on the applicability of Code of Civil Procedure section 583.320(a)(3) as discussed below. The Case Management Conference and the Status Conference Re: Five Year Rule, are continued to that date as well.

Simultaneous supplemental briefs shall be filed and served by any party wishing to address this issue, on or before August 17, 2026.

### ANALYSIS

#### Introduction

On March 18, 2016, Plaintiff Denise Baldwin filed her verified Complaint in this action against Champion Mortgage Company and fictitiously named defendants, arising out of a dispute over real property on 84th Place in Los Angeles. The Complaint alleged nine causes of action, including quiet title and violation of the California Homeowner Bill of Rights.

On or about June 7, 2018, after Champion did not respond, Plaintiff obtained a default judgment against it in the amount of \$500,000.

On September 23, 2019, the Court granted Nationstar's motion to vacate the default judgment, which was void because Nationstar had never been served with the summons and complaint.

On July 25, 2022, the Court sustained Nationstar's demurrer to the Second Amended Complaint without leave to amend, on the ground that Plaintiff had not established standing as successor in interest to the decedent.

On January 17, 2024, the Court denied Plaintiff's motion for relief under Code of Civil Procedure section 473(b) and, on the same date, granted a motion for judgment on the pleadings brought by Champion and the defendants substituted in for Doe defendants — Nationstar Mortgage Holdings, Inc.; Mr. Cooper; and Mr. Cooper Group, Inc. — and dismissed the action. Judgment was entered in Defendants' favor.

On January 30, 2024, Plaintiff filed a Notice of Appeal. The Court of Appeal dismissed the appeal on May 22, 2024 for failure to comply with the Rules of Court, then, on Plaintiff's motion, vacated that dismissal and reinstated the appeal on June 6, 2024.

On October 23, 2025, the Court of Appeal (Second Appellate District, Division Five) reversed the judgments and remanded, holding that Plaintiff had adequately alleged standing as the administrator of the decedent's estate.

On January 7, 2026, the remittitur issued.

On May 18, 2026, pursuant to the Court's order, Plaintiff filed her Brief re Computation of the Five-Year Rule.

On June 1, 2026, Defendants Nationstar Mortgage Holdings, Inc.; Nationstar Mortgage LLC d/b/a Champion Mortgage Company; Mr. Cooper; and Mr. Cooper Group, Inc. filed the instant Motion to Dismiss for Failure to Bring Case to Trial under Code of Civil Procedure sections 583.310 and 583.360.

On July 21, 2026, Plaintiff filed an opposition.

On July 29, 2026, Defendants filed a reply.

#### Requests for Judicial Notice

Defendants request the Court to take judicial notice of (1) The trial Court's docket for case no. BC614258, Denise Baldwin v. Champion Mortgage Company, et al., as filed on March 18, 2016.; (2) The appellate Court's docket for case no. B336691, Denise Baldwin v. Champion Mortgage Company, et al.; and (3) Exhibit B, attached to the previously filed Declaration of Dalar Abolian In Support of Nationstar Mortgage LLC's Notice of Motion and Motion to Vacate Default Judgment, filed with this Court in this case, case no. BC614258, on July 26, 2019.

The request is granted.

#### Motion to Dismiss – Five Year Rule

Defendant moves to dismiss the action on the grounds that Plaintiff has failed to bring the action to trial within five years after its commencement, as required by California Code of Civil Procedure Section 583.310.

#### Legal Standard

Under Code of Civil Procedure Section 583.310, the time to bring a civil action to time is "within five years after the action is commenced against the defendant." (Code Civ. Proc., § 583.310.) Commencement of an action is "firmly established as the filing of the initial complaint." (Brumley v. FDCC California, Inc. (2007) 156 Cal.App.4th 312, 318.) Further, "an action shall be dismissed by the court on its own motion or on motion of the defendant, after notice to the parties, if the action is not brought to trial within the time prescribed in this article." (Code Civ. Proc., § 583.360(a).) Code of Civil Procedure Section 583.360 also provides that "[t]he requirements of this article are mandatory and are not subject to extension, excuse, or exception except as expressly provided by statute." (Code Civ. Proc., § 583.360(b).)

#### Discussion

Here, the action was commenced on March 18, 2016. Because this action was filed on or before April 6, 2020, the six-month extension under Emergency Rule 10(a) applies, yielding a presumptive deadline of September 18, 2021. (Cal. Rules of Court, appen. I, Emergency Rule 10(a).) If an action is not brought to trial within the time prescribed by article 3, dismissal is mandatory and "not subject to extension, excuse, or exception except as expressly provided by statute." (§ 583.360, subds. (a), (b).) Defendants now move to dismiss the action on that basis.

Under section 583.340, the five-year period excludes time during which the court's jurisdiction to try the action was suspended, prosecution or trial was stayed, or "[b]ringing the action to trial, for any other reason, was impossible, impracticable, or futile." (Code Civ. Proc., § 583.340(c).) Further, the trial court must determine impossibility, impracticability, or futility "in light of all the circumstances in the individual case, including the acts and conduct of the parties and the nature of the proceedings themselves." (Bruns v. E-Commerce Exchange, Inc. (2011) 51 Cal.4th 717, 730.) In particular, the trial court must consider "whether the plaintiff exercised reasonable diligence in prosecuting his or her case." (Id.) The plaintiff bears the burden of proof to demonstrate that a Section 583.340 exception is applicable to the proceedings. (See Perez v. Grajales (2008) 169 Cal.App.4th 580, 590.)

#### Section 583.320(a)(3)

The Court identifies a threshold question that is potentially dispositive and that neither party has briefed: whether, following the Court of Appeal's reversal of the judgment and the January 7, 2026 remittitur, Code of Civil Procedure section 583.320(a)(3) supplies a new three-year period within which to bring the action to trial, in place of the five-year period under section 583.310.

Code of Civil Procedure section 583.320, subdivision (a) provides, "If a new trial is granted in the action the action shall again be brought to trial within the following times: [¶] (3) If on appeal an order granting a new trial is affirmed or a judgment is reversed and the action remanded for a new trial, within three years after the remittitur is filed by the clerk of the trial court."

The parties are ordered to submit supplemental briefs, not to exceed ten pages, addressing: (1) whether the sustaining of a demurrer without leave to amend, and the granting of a motion for judgment on the pleadings, each followed by a judgment of dismissal, is a "trial" within the meaning of the five-year statute, such that the Court of Appeal's reversal was a reversal "for a new trial" (see Code Civ. Proc., § 656); and (2) if it is, whether section 583.320(a)(3) supplies a new three-year period for the parties to bring the case to trial even where the section 583.310 period had already expired before the reversed judgment was entered, or whether an action already subject to mandatory dismissal under section 583.360 cannot obtain a fresh period by virtue of a later judgment and its reversal.

#### Conclusion

The motion to dismiss is CONTINUED to August 28, 2026 at 9:00 a.m. for the parties to submit supplemental briefing on the applicability of Code of Civil Procedure section 583.320(a)(3) as discussed below. The Case Management Conference and the Status Conference Re: Five Year Rule, are continued to that date as well.

Simultaneous supplemental briefs shall be filed and served by any party wishing to address this issue, on or before August 17, 2026.

Parties who intend to submit on this tentative must send an email to the Court at [email protected] indicating intention to submit on the tentative, and copying all parties in the email communication. Please be advised that if you submit on the tentative and elect not to appear at the hearing, the opposing party may nevertheless appear at the hearing and argue the matter. Unless you receive a submission from all other parties in the matter, you should assume that others might appear at the hearing to argue. If the Court does not receive emails from the parties indicating submission on this tentative ruling and there are no appearances at the hearing, the Court will adopt the tentative as the final order, or take the matter off calendar at its discretion.